

GZ: 2021-0.293.288 dated June 11, 2021 (Case Number: DSB-D124.3128)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

APPEAL

The Data Protection Authority decides on the data protection complaint of Philipp A*** (complainant) dated October 21, 2020 against D*** Inkasso GmbH (respondent) regarding violations of the rights to 1) confidentiality and 2) deletion as follows:

1. The complaint is upheld, and it is established that the respondent has violated the complainant's right to confidentiality by unlawfully processing his personal data for the purpose of collecting a traffic fine imposed by an Italian authority.
2. The complaint is upheld, and it is established that the respondent has violated the complainant's right to deletion by not complying with his request for deletion.
3. The respondent is ordered to delete the personal data of the complainant processed in connection with this collection process within a period of two weeks, otherwise execution will be enforced.

Legal bases: Art. 51 para. 1, Art. 57 para. 1 lit. f as well as Art. 12, 17, and 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 1 to 11 of the EU Administrative Penalty Enforcement Act – EU-VStVG (EU-VStVG), Federal Law Gazette I No. 3/2008 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In a submission dated October 21, 2020, the complainant summarized that the respondent had violated his rights to deletion and confidentiality due to the unlawful processing of his personal data and the rejection of his deletion request.

The complainant received a letter from an Italian authority in the fall of 2019, following a traffic violation in Italy in late summer 2018, in which he was requested to pay a fine of EUR 370. He did not pay further attention to this letter. The complainant does not argue before the Data Protection Authority that the alleged administrative offense did not occur, but merely that the administrative fine is not enforceable in Austria.

In a letter dated September 16, 2020, the complainant received a payment request of EUR 817.23 from the respondent, a collection agency. The complainant then requested the respondent in a letter dated September 21, 2020, to delete his personal data on the grounds that the processing was unlawful. However, the respondent rejected this request in a letter dated October 14, 2020.

2. In a letter dated November 9, 2020, the Data Protection Authority requested the respondent to provide a statement. The respondent summarized in its response dated December 11, 2020, that it was asserting a fine notice from the municipality of Pisa dated December 6, 2018, against the complainant through a power of attorney from J*** Deutschland GmbH & Co. KG, a German collection company.

The deletion could not be carried out because the complainant had not yet settled the claim against him. Furthermore, the respondent was acting solely through the transfer of functions and not as a data processor. Framework Decision 2005/214/JI of the Council of the EU provides for the enforceability of traffic fines from EUR 70. The prerequisite for enforceability is that both concerned states have enacted a national law for cross-border enforcement. Austria and Italy have each already implemented the framework decision into national law. Art. 17 para. 3 lit. e GDPR is applicable, and therefore deletion of the data is not required.

3. In a submission dated December 29, 2020, the complainant summarized in the context of the parties' hearing that the respondent is a private company, and the legal basis cited by the respondent, Framework Decision 2005/214/JI of the Council of the EU, only relates to enforcement authorities and is therefore not applicable. Furthermore, there is no reciprocity between Italy and Austria, as provided

for in Art. 20 para. 2 of Framework Decision 2005/214/JI of the Council, which is why cross-border enforcement between the two states does not occur.

4. In a letter dated February 3, 2021, the Data Protection Authority requested the respondent to provide an additional statement. The respondent summarized in its response on February 23, 2021, that it considered itself a joint controller under Article 26 GDPR regarding the processing of the complainant's personal data in the context of a sub-power of attorney by J*** Deutschland GmbH & Co. KG. Consent from the affected debtor for the data transfer was not necessary, as this was based on the legal grounds of Article 6(1)(b) and (f) GDPR – data processing for the performance of a contract and based on legitimate interests.

5. In a submission dated March 14, 2021, the complainant summarized in the context of the parties' hearing that the claims in Austria were not legally enforceable and therefore the respondent's processing of data violated his right to confidentiality. The respondent should be defined as a data processor.

6. In a letter dated April 8, 2021, the Data Protection Authority sent a request for assistance to the Office of the Carinthian Provincial Government regarding whether there was a procedure for the enforcement of the administrative fine of the Province of Pisa against Philipp A***. This office stated in summary on April 19, 2021, and via telephone on April 28, 2021, that there was no procedure for the enforcement of the administrative fine of the Province of Pisa against Philipp A***. Furthermore, neither the respondent nor J*** Deutschland GmbH & Co. KG had been commissioned by the Office of the Carinthian Provincial Government to pursue a claim against the complainant. The protocol of the Polizia Provinciale Provincia di Pisa (No: 41*734A/2018 5*1*4/2018) was sent by regular mail to the address of the complainant indicated in the protocol on January 9, 2021, following its receipt on December 27, 2018, in accordance with the agreement between the Republic of Austria and the Italian Republic on mutual assistance in motor vehicle matters BGBl. No. 406/1990. The Polizia Provinciale Provincia di Pisa was informed of the dispatch via a delivery protocol.

B. Subject of the Complaint

The subject of the complaint is whether the respondent violated the complainant's right to confidentiality by unlawfully processing his personal data. Furthermore, the subject of the complaint is whether the complainant was violated in his right to deletion, as his personal data was not deleted by the respondent despite a corresponding request.

C. Findings of Facts

On September 15, 2018, the police of the Province of Pisa (Polizia Provinciale Provincia di Pisa), Italy, detected a speeding violation committed with the motor vehicle registered to the complainant with the Austrian license plate HE-*3* *T. Subsequently, on December 27, 2018, the police of the Province of Pisa sent the following letter to the Office of the Carinthian Provincial Government:

[Note from the editor: The letter, presented in the original as a graphic file, cannot be pseudonymized with reasonable effort; it contains a standard request in German to deliver the "administrative protocol" No: 41*734A/2018 5*1*4/2018 to the complainant, who is clearly identified by name, address, and vehicle registration number, the corresponding official decision in German ("Determination of a violation of the road traffic regulations," containing the place, time, and facts of the alleged violation [exceeding the locally permissible maximum speed], the amount of the fine to be paid, and a legal remedy instruction), as well as a prepared delivery confirmation.]

The Office of the Carinthian Provincial Government sent this letter to the complainant on January 9, 2019, and transmitted a delivery protocol to the police of the Province of Pisa. The complainant did not respond to this letter and did not pay the amount specified in the letter. Subsequently, [Note from the editor: Name/company is missing in the text of the decision at this point, referring to the R*** S.r.l. Italy mentioned further below] was commissioned to pursue fines from Italian municipalities. This company then commissioned the collection agency J*** Deutschland GmbH & Co. KG based in Cologne. On August 3, 2020, J*** Deutschland GmbH & Co. KG commissioned the respondent to pursue certain claims and granted it the authority to, among other things, in accordance with Framework Decision 2005/214/JI of the Council of February 24, 2005, on the application of the principle of mutual

recognition of financial penalties and fines, entrust the competent authorities with the enforcement of the claims.

In a letter dated September 16, 2020, the complainant received a payment request in the amount of EUR 817.23 from the respondent.

The complainant then requested the respondent in a letter dated September 21, 2020, to delete his personal data on the grounds that the processing of his personal data by the respondent was unlawful. The respondent rejected this request in a letter dated October 14, 2020, referring to the outstanding claim.

The complainant has not settled the claim to this day.

The office of the Carinthian provincial government was not contacted at any time by Italian authorities to act under the EU Administrative Enforcement Act. Furthermore, no proceedings were initiated by the Italian authorities under the EU Administrative Enforcement Act.

Assessment of evidence: The findings are based on the submissions of the parties as well as on the statement of the Carinthian provincial government dated April 19, 2021, in response to a request for administrative assistance from the Data Protection Authority.

D. From a legal perspective, it follows:

Regarding point 1:

1.

The respondent as a collection agency is to be classified as a data controller according to the consistent case law of the Data Protection Authority – unless there are contrary indications – as a collection agency also decides on the means of data processing (cf. the decision of the Data Protection Commission dated February 29, 2008, GZ: K121.330/0004-DSK/2008). The legal view of the complainant that the respondent is merely a processor cannot be followed.

Since the respondent is to be regarded as a data controller, it must demonstrate the lawfulness of the data processing it carries out (Art. 5 para. 2 in conjunction with para. 1 lit. a GDPR). The fact that it is merely a recipient of the data does not change this.

2.

The fundamental right to confidentiality enshrined in § 1 DSG, according to which everyone, particularly with regard to the respect for their private and family life, has a right to the confidentiality of their personal data, as long as there is a legitimate interest in doing so, includes the protection of the data subject against the investigation of their data and the transfer of the data collected about them. However, the fundamental right to confidentiality is not absolute and may be restricted by certain permissible interventions.

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG when personal data is used in the vital interest of the data subject, when the data subject has given their consent (or in the terminology of the GDPR: permission), when there is a qualified legal basis for the use, or when the use is justified by overriding legitimate interests of another party.

The GDPR and, in particular, the principles enshrined therein must be taken into account in the interpretation of the fundamental right to confidentiality according to § 1 DSG (cf. the decision dated October 31, 2018, GZ: DSB-D123.076/0003-DSB/2018).

3.

In the present case, the complainant is accused of a traffic violation by an Italian authority, for which a fine of 147.18 EUR (in case of early payment) was imposed on him.

There are no indications that this is not a fine under § 2 para. 2 lit. a EU-VStVG, through which Framework Decision 2005/214/JI was implemented. The respondent also states in this context that the framework decision is applicable.

4.

The respondent invokes the permissive condition of contract fulfillment according to Art. 6 para. 1 lit. b GDPR, the assertion of legal claims according to Art. 17 para. 3 lit. e GDPR, as well as legitimate interests of the controller or a third party according to Art. 6 para. 1 lit. f GDPR.

This argument cannot be followed:

5.

Since the Framework Decision 2005/214/JI and thus the EU-VStVG are applicable here, the enforcement of fines by private collection agencies is not considered.

The enforcement of decisions from other member states in Austria is rather governed by Section 2 of the EU-VStVG.

As can be seen from the findings, no proceedings were initiated at any time based on the EU-VStVG. The actual transmission of the letter from the Italian police to the complainant by the Carinthian provincial government does not change this, especially since it was transmitted based on international legal provisions.

Due to the fact that the (Union) legislator has established a specific procedure for the collection of foreign administrative fines, namely through the national enforcement authorities, the data processing by the respondent as a collection agency cannot be justified by other permissive conditions of Art. 6 GDPR, and in particular, there cannot be an overriding of the interests of the respondent or third parties within the meaning of Art. 6 para. 1 lit. f GDPR. In the absence of a contract to which the complainant is a party (cf. Art. 6 para. 1 lit. b GDPR), the respondent cannot rely on this justification either.

Since none of the conditions of Art. 6 GDPR are met, the processing of the complainant's data by the respondent was unlawful, thereby violating the complainant's right to confidentiality pursuant to § 1 DSG.

6.

It should not be overlooked that the respondent was ultimately commissioned by another company to carry out the collection. However, since the respondent was evidently aware that Framework Decision 2005/214/JI was applicable, it should have concluded that the commissioning of an Italian company (R*** S.r.l. Italy, Via C*** 25, 0*3*6 U***) for the enforcement was already unlawful, meaning that this company unlawfully obtained the complainant's data. According to the established case law of the Administrative Court, this unlawfulness of the investigation results in the unlawfulness of any subsequent transmission by the same responsible party (see most recently the decision of February 23, 2021, Ra 2019/04/0054 with references). This unlawful transmission chain continues to the respondent, so that the transmission ultimately made to the complainant as the recipient (see Art. 4 No. 9 and 10 GDPR) – and thus the processing of the personal data – was unlawful.

7.

Since the respondent unlawfully processed the complainant's personal data, it should have complied with the complainant's request for the deletion of his personal data in accordance with Art. 17 para. 1 lit. d GDPR. By refusing the deletion, it also violated the complainant's right to deletion.

Regarding point 2:

For the restoration of a data protection-compliant state, the Data Protection Authority was therefore entitled, pursuant to Art. 58 para. 2 lit. d GDPR in conjunction with § 24 para. 5 DSG, to instruct the respondent within a reasonable period to restore the lawful state.

It was thus to be decided accordingly.